

ClauseRisk Annotation Guidelines

Legal-risk annotation of contractual clauses and online service agreements under Algerian law — Supplementary Material

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1. Purpose and scope

These guidelines define how legal risk is annotated in the three resources of the ClauseRisk project: the trilingual clause database, its fully annotated knowledge base, and the external evaluation corpus EVAL-EEM. They were given to every member of the expert panel together with the annotation files and a revision worksheet.

The reference framework is Algerian legislation (Section 6). Annotators assess the **clause**, never its author: an annotation records the wording, the risk level and the provisions engaged. It does not state that a clause is unlawful, nor that an organization is liable. It flags the statutory provisions a clause engages, for triage purposes.

2. Annotation units

Resource	Unit	Fields to annotate
Trilingual database (845 clauses)	One clause, available in Arabic, French and English	Binary legal-risk label (Section 3)
Knowledge base (315 entries)	One clause of the database retained for full annotation	Risk level, risk category, legal basis, potential penalty, trigger label (Sections 4–7)
EVAL-EEM (81 passages)	One passage: a coherent excerpt of a Terms-of-Service or privacy document, as a user would submit it	Risk level, risk category, engaged article(s), verbatim evidence span, stratum (Section 8)

A single annotation applies to the three language versions of a clause. Annotators must therefore check that the three versions carry the same legal meaning before annotating (Section 9).

3. Binary legal-risk label (database)

1 (risky): the clause raises a legal-risk issue under Algerian law, whatever its severity. **0 (non-risky)**: the clause raises no such issue. This label records the *presence* of a legal issue, not its *severity*: a clause of LOW severity (Section 4) may carry the label 1.

4. Risk levels

Assign exactly one level. When hesitating between two levels, apply the decision factors of Section 5 before choosing.

Level	Definition	Typical indicators
HIGH	Direct engagement of a statutory prohibition or of a mandatory requirement	Explicit waiver of rights; international transfer of personal data without the authorization of the national authority; sensitive or biometric data without explicit consent and safeguards; abusive clause within the meaning of Loi 09-03, Art. 17; restriction of access to Algerian courts; cumulative violations
MEDIUM	Potential or context-dependent issue that calls for review	Ambiguous wording; insufficient transparency (purpose, retention); unilateral modification with notice; collection of non-sensitive data without a stated purpose
LOW	Standard clause, compliant or purely descriptive	Collection of an identifier for a stated service purpose with consent; neutral descriptive content
NONE	No legal content	Headings, navigation text, marketing text without obligations

Illustrative examples (case study of the manuscript):

- **LOW** — *We may collect your email address to send you service updates.* Contact identifier, stated purpose (Loi 18-07, Art. 5 and 7).
- **MEDIUM** — *Cette application peut suivre votre position géographique.* No express consent, no stated purpose; geolocation is not a special category under Art. 18.
- **HIGH** — *We collect your biometric and fingerprint data indefinitely and may share it with third parties without your consent.* Sensitive data (Art. 18), no consent (Art. 7), indefinite retention (Art. 5), cumulative violations (factor F3).

5. Decision factors

Factor	Rule
F1 Statutory anchoring	Every MEDIUM or HIGH annotation must cite one or more articles (Section 6). If no article can be cited, the level cannot exceed LOW.
F2 Issuer status	Clauses issued by Algerian public institutions are assessed more strictly; a borderline MEDIUM may be raised to HIGH.
F3 Cumulative violations	A clause engaging two or more distinct provisions is HIGH (precautionary principle).
F4 Sensitive data	Health, biometric, genetic, political, religious or similar data: HIGH unless explicit consent and adequate safeguards are stated.
F5 Contract modification	Unilateral modification without notice is the most severe case; transparent modification with notice and opt-out is lower risk.
F6 Access to legal remedy	Mandatory foreign forum or arbitration, or waiver of legal action: HIGH.
F7 Data retention	Undefined or vague retention ("as long as necessary") raises the level; precise retention with deletion lowers it.
F8 Language accessibility	Wording inaccessible to the average Algerian consumer is noted as a contextual indicator; it never determines the level on its own.

6. Legal framework

Instrument	Provisions used
Loi 18-07 (10 June 2018), personal data (amended by Ordonnance 25-11, 24 July 2025)	Art. 4 transparency and lawful processing; Art. 5 purpose limitation and minimization; Art. 7 express consent; Art. 17 proportionality; Art. 18 sensitive data; Art. 32–37 data-subject rights; Art. 44–45 transfers abroad
Loi 09-03 (25 February 2009), consumer protection	Art. 17 abusive clauses
Loi 18-05 (10 May 2018), e-commerce	Art. 25 commercial prospection (prior express consent); Art. 41 jurisdiction
Loi 04-02 (23 June 2004), commercial practices	Price transparency; abusive commercial terms
Code Civil; Code de Procédure Civile; Constitution	Code Civil Art. 178 liability waivers; CPC Art. 40 jurisdiction; Constitution Art. 165 access to courts; Ordonnance 03-05 copyright
Penal Code	Art. 61–67 offences against the security of the State; Art. 87 bis terrorist or subversive acts

7. Knowledge-base fields

Field	Content
Risk level	LOW, MEDIUM or HIGH (Section 4)
Risk category	One of: personal data protection / privacy compliance; potential abusive / unfair contract term; choice-of-law / forum-selection evasion; espionage / treason exposure; terrorism / illicit-support language; outside the selected legal categories ("no match"). A second category may be added when two apply.
Legal basis	Instrument and article(s), as in Section 6

Field	Content
Potential penalty	Sanction provided by the cited provision, if any
Trigger label	Short label of the formulation that triggers the risk (e.g. transfer_abroad_without_consent)

8. EVAL-EEM passage fields

Field	Content
Gold risk level	One level, for the passage as a whole: the most severe level engaged by any of its obligations
Risk category	As in Section 7
Engaged article(s)	All articles engaged by the passage
Evidence span	The exact words of the passage that justify the level, copied verbatim
Stratum	critical : explicit engagement of a statutory prohibition; ambiguous : the level depends on context not stated in the passage (issuer, purpose, safeguards); benign : no substantive legal risk

Annotators must not record the identity of the issuer in any annotation field. Identifying elements are removed from the passage text before release.

9. Cross-lingual alignment

- Arabic is the source language of the database; French and English versions were drafted with translation tools (ChatGPT, DeepL, Google Translate) and corrected by two language supervisors.
- Before annotating, check that the three versions convey the same legal meaning and the same risk interpretation: same obligation, same party, same scope, same conditions.
- Report any discrepancy on the revision worksheet; it is corrected jointly by the language supervisors and the legal experts before the annotation is finalized.

10. Review and adjudication

- Each expert receives the full annotation file, these guidelines and a revision worksheet, and returns the worksheet independently.
- Disagreements are adjudicated by majority (at least three concurring experts) or, failing that, by bilateral discussion.
- Revisions typically concern the precision of the cited articles or the downgrading of HIGH to MEDIUM when contextual ambiguity was underestimated.
- Agreement study: on a stratified subset of 25 EVAL-EEM passages, two annotators who did not produce the original labels re-annotate each passage blind, choosing among NONE, LOW, MEDIUM and HIGH without access to the reference labels or to each other's choices.

11. Use of the labels in evaluation

Gold level	Three-class task	Binary task
NONE	(error if predicted)	NOT-RISKY
LOW	LOW	NOT-RISKY
MEDIUM	MEDIUM	NOT-RISKY
HIGH	HIGH	RISKY